THE REPUBLIC OF CORTESIA DEL MAR
SUPREME COURT

In the matter between:

VORTEXION

&

STAR_LITTY

& ASTROBOLT

CASE DETAILS

CASE NUMBER: 6

COURT: IceCarim ACJ

DATE: 15 October 2024 (GMT)

JUDGMENT

JUDGMENT OF THE COURT: IceCarim ACJ, paras [1] – [69]

ACTING CHIEF JUSTICE ICECARIM delivered the judgment of the Court.

I. Introduction

[1] The central question in this matter is whether the leader of a foreign nation may run for President or Vice President in Cortesia Del Mar. Closely bound up with this question are important considerations concerning this Court's reach into the eligibility of candidates, a matter some in the argument before us contend is more fit for legislative decision.

[2] There is also a counterapplication before us, seeking to have Vortexion disqualified from the upcoming presidential election.

II. Should direct access be granted?

[3] We start by determining whether this Court should grant Vortexion direct access to have the candidacy of star_litty and Astrobolt challenged.

[4] As is now a familiar refrain, this Court does not have enough members to be quorate. But in *CommradePotatoe I,* we held that the doctrine of necessity may require us to hear a case nonetheless. In our reasoning—

> "if no judges but one are available to hear a matter — rendering the court inquorate — it is better that the matter be heard than not. (See Lamer CJ's similar language: "The law recognizes that in some situations a judge who is not impartial and independent is preferable to no judge at all.") Such occasions will be rare, and courts must be slow to find them. The key guiding point is whether the Constitution requires bypassing a rule it sets to secure its own stability. This is such a case."

[5] And as the Common Court recently said, in *star_litty v National Forum*, we must remember that what is required is *necessity*. If it is not necessary to decide the case, it is necessary not to decide the case on direct access.

[6] This must be understood in tandem with Section 106(4)(a)(ii) of the Constitution[1], which allows this Court to hear any matter "brought to it

[1] Constitution of the Republic of Cortesia Del Mar, 2022.

directly, if this is in the interests of justice". In *Ex Parte yodabird19 I*, we explained that:

> "Considering the rarity of appeals on CivMC, we do not think it necessary to require cases to go through such a thorough examination before we hear them. This is particularly so because the judge sitting on first instance may well also sit on appeal. A matter directly heard by this court is unlikely to differ in result from one that has been through the pipeline."

[7] We also said in *CommradePotatoe v Vortexion II* that: "This reasoning applies even more forcefully in the *Horizon's End* context, where court cases — let alone appeals — are rare. We should therefore not hesitate to hear cases directly when the interests of justice so require."

[8] In the present circumstances, several considerations impel us to take this case swiftly. Firstly, the election is a few days away. Candidates need time to prepare and convince voters, and any undue delay or uncertainty in whether they are still able to run could cause prejudice. Secondly, the issues raised in this matter are of great public importance, relating as they do to the integrity of our government. They have generated much public interest. And thirdly, as shall be shown, Vortexion does have prospects of success.

[9] Fourthly, as we said in *CommradePotatoe II*: "Viewed in the present context, where the likelihood of this Court being quorate is low, the interests of justice require us to hear the matter directly. It makes scant sense to slow things down by having the same judge hear the case twice — and that is exactly what is bound to happen if we do not take this matter directly.

Whether we do or do not take this matter directly, the eventual disposition of this case would require an inquorate Supreme Court to hear the matter under the doctrine of necessity. We spare the litigants the ordeal of a superfluous judicial process."

[10] This reasoning applies to this case with equal force. We therefore grant direct access.

III. Can a foreign leader run for President in Cortesia?

[11] We turn now to the central question in this case. We start by recounting the factual background giving rise to it.

A. Factual background

[12] The respondents, star_litty and Astrobolt were granted Cortesian citizenship on 15 October 2024. They subsequently registered for the October 2024 presidential election, with star_litty running for President and Astrobolt for Vice President.

[13] Presently, star_litty and Astrobolt are the leaders of Radiance, a nation allied to Cortesia Del Mar. star_litty is the President of Radiance, and Astrobolt the Vice President. They are both in-game members of Radiance, although star_litty says: "If we won [the election], I would highly consider handing off radiance to someone else". She later added, "But I am not sure, I would prefer to stay with my people but have full faith in my councilmen and fellow leaders".

B. The arguments

[14] These, then, are the facts on which the present application finds its grist. For convenience, I will refer to the candidates who are the subject of this case as "star" and "Astro".

[15] Vortexion phrases his objection to their candidacy as follows:

> "It is my strong personal conviction that any one or more persons already functioning in an administrative capacity in another nation's government should be disallowed access to presidential candidacy."

[16] In response, Astro asked that the case be dismissed, reasoning that the "complaint has no constitutional basis". Their line of defence was that "[a]nyone with basic familiarity of the Cortesian Constitution should understand" that being a leader of a foreign nation "is not a disqualifying factor". (With corrected grammar.)

[17] The Court requested the parties to go beyond the text of the Constitution. We asked: "[If there is a candidate that stands adamantly against the

Constitution, is it appropriate to protect the Constitution by preventing that candidate from standing for election?" We also asked the following:

> "We can accept as a general proposition that a foreign leader may have a conflict of interest if they become the leader of another nation. This isn't to cast aspersions on anyone, and I think it states quite an uncontroversial possibility. Is this possibility serious and likely enough to raise the constitution's inherent need to protect the nation's integrity, whether that is viewed as sovereignty, independence, civil suffrage, or democracy?"

[18] We received a number of varying views in response. In summary, they are (with corrected grammar where necessary):

- That the issue is not appropriate for the courts to decide. In Astro's submission, this "is a matter for the people to decide through direct election." Otherwise, "the idiosyncratic inferences of a few judicial minds"[2] would effectively be determinative of eligibility for public office. And that possibility is, quite self-evidently, prone to abuse.
- That "if someone was actively campaigning on being a threat to this nation, I think there would be a possibility that they could be disqualified. It would require someone to prove it beyond any and all reasonable doubts, but I think it's possible." This is Vice President CommradePotatoe's submission. He does not believe, however, that star or Astro meet any of the constitutional disqualifications in the present matter.
- That, as per Gold, "I do not think anyone not in Cortesia should be able to become President".
- That it is doubtful "one person could effectively and efficiently fulfill two governing positions' duties at once", according to Vortexion. This is largely because, in his submission, it could constitute a serious security risk in that a foreign leader who becomes Cortesia's President may act "with less than benign intentions".

[2] *Beadica 231 CC and Others v Trustees for the time being of the Oregon Trust and Others* (CCT109/19) [2020] ZACC 13; 2020 (5) SA 247 (CC); 2020 (9) BCLR 1098 (CC) (17 June 2020) para 82.

[19] We will refer to this discussion as the "constitutional value system argument".

[20] Gold raised a forceful argument of a different tenor in the course of the hearing with his submission that "it only makes sense to only allow someone to be President or Vice President if they are actually *in* the in-game nation". (Grammar adjusted.) In response, the Court asked the parties whether it is "actually possible for someone to be the President of Cortesia without leading the nation in game". (Grammar adjusted.)

[21] We distilled the issues as follows:

> "1. The in-game manifestation of the nation is arguably the most important manifestation of the *nation* (as opposed to the community, for which this discord is the most important platform). Can someone be president — the leader of the nation — without leading us in-game?
>
> 2. If someone is able to be president from afar (by which I mean, performing constitutional responsibilities through an intermediating agent), is that really the office of president as envisaged by the constitution?"

[22] In response, we received several helpful submissions. They may be summed up as follows:

- As President yodabird19 noted, Section 149 of the Constitution allows "that an auxiliary apparatus (such as this Discord server, or the in-game nation) may be controlled *either* by the president *or* by a state institution given authorization to do so — so the issue could conceivably be sidestepped by simply authorizing an institution (the ministry of the interior comes to mind?) to own such imperilled apparatuses". (Grammar adjusted.)
- According to Astro, these are more logistical than constitutional concerns, and do not operate to debar anyone from running for President. Indeed, a workaround can be found if star and Astro are elected.
- The Vice President raises the concern that someone who does not exercise control of the nation in-game might not be able to fulfil their constitutional duties. This is anticipated by this question he posed: "Would you be able to

say, add someone into the Cortesian group Astro as vice president?" (Grammar adjusted.)

[23] We will refer to this discussion as the "actual control argument."

[24] We turn now to the merits of this matter.

C. Separation of powers

[25] It was raised numerously in the hearing that, because the Constitution is silent on whether foreign leaders may run for President in Cortesia, this Court would be "legislating from the bench", to borrow Astro's language, if it were to nonetheless find that foreign leaders cannot so run.

[26] In like vein, the Vice President remarked that "this appears to be more a political discussion about how things should be done, not an interpretation of any law" and that he "believe[s] this to be more of an issue for the National Forum to legislate instead of the Supreme Court."

[27] We must confront this issue first, because if we are indeed not empowered to decide this issue, then *cadit quaestio* (the question falls away).

[28] As a starting point, we repeat what we said in *Ex Parte yodabird 19 I*:

> "Section 1(2) of the Constitution proclaims that Cortesia Del Mar "is founded on a commitment to realise and advance the values that underlie a free, peaceful, and democratic society, including equality, human dignity, civil suffrage, humanity, inclusiveness, liberty, secularism, accountability, justice, and the rule of law." Section 8(1) requires courts to interpret the Charter of Rights "in a way that advances the ideal of a free, peaceful, and democratic society based on [those] fundamental values".
>
> The Constitution thus embodies an "objective value system".[3] We endorse the comments of the German Constitutional Court explaining that such a system "acts as a guiding principle and stimulus for the legislature, executive and judiciary."[4]

[3] BVerfGE 39, 1 at 41.
[4] Id.

As Chief Justice Marshall held, 220 years ago, "[i]t is emphatically the province and duty of the Judicial Department to say what the law is".[5] We shrink from this responsibility if we ignore the value system created by the Constitution and focus only on the text.

Nor are we prepared, today, to foreclose future courts from finding "that specific guarantees in the Bill of Rights have penumbras, formed by emanations from those guarantees that help give them life and substance."[6] And, indeed, to do so would be flatly unconstitutional, for Section 7(5) explicitly envisages rights that are "necessarily inferred from a provision of [the] Constitution."

[29] The import of our holding in *Ex Parte yodabird19 I* is that the Constitution is not merely a modular set of textual instructions. It is a constellation of values that undergird the functioning of the nation, reaching both private and public conduct.

[30] In a concurring judgment in *De Lange v Presiding Bishop of the Methodist Church of Southern Africa*, Van der Westhuizen J rhetorically asks: "Is it not rather the case that the Constitution – as a set of values and protected fundamental rights – indeed reaches even into the most intimate spaces; but carries with it all the rights and values it recognises?"[7]

[31] He recognises also that this view may be criticised. Translating "a veritable Blitzkrieg" on the *Bundesverfassungsgericht* (German Federal Constitutional Court), he quotes from Lamprecht and Malinowski *Richter Machen Politik* (Fischer Taschenbuchverl, Frankfurt 1979) at 11-2:

> "And they always have the last word. What the [Court] decides, even with a narrow . . . majority, no person can change. It can declare elections . . . invalid . . . it can ban political parties. . . . [Its judgments] *reach out into the last office, into the last house.*"[8]

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[5] *Marbury v. Madison*, 5 U.S. (1 Cranch) 137 (1803) at 177.
[6] *Griswold v. Connecticut*, 381 U.S. 479 (1965) at 484.
[7] *De Lange v Presiding Bishop of the Methodist Church of Southern Africa for the time being and Another* (CCT223/14) [2015] ZACC 35; 2016 (1) BCLR 1 (CC); 2016 (2) SA 1 (CC) (24 November 2015) para 76. Emphasis deleted.
[8] Ibid para 69. Internal quotation marks omitted.

[32] Still, courts must decide any dispute that "can be resolved by applying Cortesian law." Section 98(3) of the Constitution says so. Section 4(1)(a) makes it clear that the Supreme Court is entrusted with interpreting the Constitution, and has the final word on what the Constitution ordains.

[33] If a matter reaches into the constitutional value system, we are thus empowered to adjudicate upon it even if the text is silent. We endorse the remarks of the South African Constitution Court in *South African Association of Personal Injury Lawyers v Heath* where it said "there is a clear though not absolute separation between the legislature and the executive on the one hand, and the courts on the other".[9] We also agree that—

> "while the doctrine of separation of powers is an important one in our constitutional democracy, it cannot be used to avoid the obligation of a court to prevent the violation of the Constitution. The right and the duty of this Court to protect the Constitution are derived from the Constitution, and this Court cannot shirk from that duty."[10]

[34] But we also equally endorse the Court's caution that "judges should be mindful of the fact that the major engine for law reform should be the legislature and not the judiciary."[11] To this we would add that, in a case concerning the eligibility of a person for the highest office in the nation, we must be exceedingly cautious not to unduly trammel on the right of every citizen to run for elected public office.

[35] With all these considerations in mind, we reject the argument that separation of powers prevents this Court from hearing the matter. We now turn to the first of the arguments raised before us.

D. The constitutional value system argument

[36] All the parties agree that the Constitution does not *explicitly* prohibit leaders of foreign nations from running for President in Cortesia. For the purposes of this judgment, we will take the strongest form of the constitutional value

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[9] *South African Association of Personal Injury Lawyers v Heath and Others* (CCT27/00) [2000] ZACC 22; 2001 (1) SA 883; 2001 (1) BCLR 77 (28 November 2000) para 23.
[10] *Doctors for Life International v Speaker of the National Assembly and Others* (CCT12/05) [2006] ZACC 11; 2006 (12) BCLR 1399 (CC); 2006 (6) SA 416 (CC) (17 August 2006) para 200.
[11] *Carmichele v Minister of Safety and Security* (CCT 48/00) [2001] ZACC 22; 2001 (4) SA 938 (CC); 2001 (10) BCLR 995 (CC) (16 August 2001) para 36.

system argument — namely that it is essential to the integrity of the nation that its most important executive officer is not elected from among individuals likely to have interests conflicting with those of Cortesia. We do this because if the high-water mark of the argument does not succeed, then we need to consider the eligibility of a foreign leader to run for Vice President.

[37] The parties also agreed that it is reasonable to be concerned about a conflict of interest arising when a foreign leader runs for President in Cortesia. Indeed, Astro acknowledges that the issue is Vortexion's "inability to provide anything from the Constitution" to support the application.

[38] It is not unusual for a constitution to bar a class of citizens from election by reason of that class's "aims or the behaviour of its adherents to undermine the free democratic basic order".[12] That is exactly what Article 21 of the German *Grundgesetz* (Basic Law) does. We do not need to assume in this case, though, that foreign leaders who are citizens of Cortesia will necessarily "undermine the free democratic basic order". We agree with the Vice President that this should rather be determined without any doubt before we take a drastic action such as disqualifying the class of citizens from running for office.

[39] More modestly, Section 145(1) of the Constitution provides that the "government of the Republic must adhere to and foster the following principles:"

- Democratic governance, involving the representation of all citizens; meaningful public participation; and the accordance of protection and respect to any expression of a minority viewpoint in a political discussion.
- *Accountability.*
- Constitutional supremacy and the rule of law.
- *The best interests of the Republic and its people.*
- Justice and fairness.
- Responsiveness.

[12] https://www.bundesverfassungsgericht.de/SharedDocs/Pressemitteilungen/EN/2017/bvg17-004.html

- *Transparency and openness.*
- The need for informative, timely, and engaging communication.

[40] In addition, Section 147 provides that State officials, in pertinent part, must not "use their office, or any information entrusted to them by virtue of their office, to improperly benefit themselves or another person"; "disclose sensitive government information to a foreign party without the required authorisation"; or "culpably expose themselves to any situation involving a risk of a conflict between their official responsibilities and private interests."

[41] We are prepared to assume that a foreign leader will, at best, find it intensely difficult to reconcile the interests of the two different nations they lead. This makes it nigh on impossible to guarantee that such a leader will always promote the best interests of Cortesia or infallibly maintain a separation between the interests of the two or more nations they lead.

[42] On the other hand, this perception will probably be held by most reasonable Cortesians casting their ballots in a presidential election. It would likely take an extraordinarily persuasive candidate to convince voters that they could fulfil the office of President while being the leader of a foreign nation. This could guard against the possibility that such a candidate would endanger the integrity of the Cortesian government.

[43] What breaks the tie, in our view, is that the Constitution jealously guards the right of citizens to stand for any elected office. Section 11(6) proclaims that: "*Except where this Constitution specifies otherwise*, no law may limit the right to stand in an election for an elected public office established in this Constitution." The Constitution itself provides a handful of disqualifying criteria, like holding judicial office or, in the case of running for the National Forum, running too soon after an unsuccessful attempt. In the fact of this, it would take an exceedingly persuasive reason to infer out of the Constitution an additional disqualifying ground, aimed at protecting the constitutional order.

[44] For these reasons, we are not convinced that the constitutional value system argument is sufficient to disqualify star from running for President. This reasoning applies *a fortiori* to Astro's candidacy for the office of Vice President.

E. The actual control argument

[45] The integrity of the government, however, is not the only constitutional concern in this matter. Equally relevant is the practical force of the Constitution's norms.

[46] We recall that Section 85(5)(b) of the Constitution says that a citizen may be "precluded from holding office as President by *or pursuant* to a provision of this Constitution". The word "by" would be superfluous if only explicit provisions of the Constitution can disqualify a citizen from running for President. This is supported also by the fact that no disqualifications appear in the rest of the constitutional text. It is therefore possible that they appear by necessary implication.

[47] Certain provisions in the Constitution envisage the President performing constitutional responsibilities of control. Section 149, for example, places "any apparatus used for communications or to facilitate the exercise and performance of constitutional powers and functions" in the "exclusive control" of the President or "a State institution operating that utility to assist in the performance of its functions." It is likely that a State institution will only exercise that control for a special reason; what comes to mind is a situation where an intelligence body, for instance, requires its own communication apparatus.

[48] A foreign leader who is not a member of the Cortesian nation in-game will undoubtedly be unable to directly perform important constitutional obligations if elected President, such as assigning permissions to residents. In fact, the same holds true for any hypothetical President who is not a member of the Cortesian nation in-game.

[49] This brings us to the argument that a workaround may be possible in most cases. We cannot agree.

[50] In *Economic Freedom Fighters v Speaker of the National Assembly*, sometimes known as the *Nkandla* case, Mogoeng CJ wrote for a unanimous South African Constitutional Court that:

> "The President is the Head of State and Head of the national Executive. His is indeed the highest calling to the highest office in the land. He is the first

citizen of this country and occupies a position indispensable for the effective governance of our democratic country. Only upon him has the constitutional obligation to uphold, defend and respect the Constitution as the supreme law of the Republic been expressly imposed. The promotion of national unity and reconciliation falls squarely on his shoulders. As does the maintenance of orderliness, peace, stability and devotion to the well-being of the Republic and all of its people. Whoever and whatever poses a threat to our sovereignty, peace and prosperity he must fight. To him is the executive authority of the entire Republic primarily entrusted. He initiates and gives the final stamp of approval to all national legislation. And almost all the key role players in the realisation of our constitutional vision and the aspirations of all our people are appointed and may ultimately be removed by him. Unsurprisingly, the nation pins its hopes on him to steer the country in the right direction and accelerate our journey towards a peaceful, just and prosperous destination, that all other progress-driven nations strive towards on a daily basis. He is a constitutional being by design, a national pathfinder, the quintessential commander-in-chief of State affairs and the personification of this nation's constitutional project."

[51] We quote this passage not so much for its opulence. We wish to emphasise that the President of Cortesia is no ordinary office holder; and citizens are entitled to demand the highest standards from the nation's highest office-holder.

[52] It is no answer to say that the President, while leading a foreign nation at the same time, may seek workarounds to perform their constitutional role. The President is not only an active leader of the nation, but someone who the world sees as the figure representing Cortesia Del Mar. When the President is not that person, they cannot perform that responsibility. Correspondingly, the lofty office envisaged by the Constitution must settle for less.

[53] Consider the presidential affirmation of office:

"I, [name], do solemnly pledge that I will faithfully fulfil the office of President of the Republic of Cortesia Del Mar with conscience and diligence. To this end, I *promise to serve the Republic and its best interests*

with unwavering loyalty, and will, to the best of my ability, do all that is necessary and proper to preserve the national unity, ensure fair governance, advance the welfare of its people, safeguard its constitutional order, and uphold its laws."

[54] For the reasons given in the course of addressing the constitutional value system argument above, we entertain serious doubts that a President who is not a member of the in-game Cortesian nation can commit to always serve the Republic and its best interests. In fact, we would go further. If a President needs to rely on others to fulfil some of their most core obligations, we fail to see how that President truly provide the vigilance and attention necessary to serve the best interests of the Republic.

[55] We thus conclude that a citizen who is not a member of the Cortesian nation in-game cannot run for President. We think similar considerations apply to the office of Vice President, but because of the disposition we take of this matter, we need go no further.

IV. A just and equitable remedy

[56] The conclusion we have just reached is not readily apparent to candidates presently engaged in the election. And fairness means that the " law must indicate with reasonable certainty to those who are bound by it what is required of them so that they may regulate their conduct accordingly."[13]

[57] Section 110(1) of the Constitution says that "a court may issue any effective and equitable order in the decision of matters involving the application of this Constitution." An equitable order might involve "suspending the declaration of invalidity, for an appropriate period and with appropriate conditions" in the case of declaring legislation invalid.

[58] We borrow from that notion to suspend our declaratory order until the beginning of the next presidential election. This ensures that star and Astro are not unduly prejudiced in the exercise of rights that they rightly thought they had.

[13] *Affordable Medicines Trust v Minister of Health* [2005] ZACC 3; 2006 (3) SA 247 (CC); 2005 (6) BCLR 529 (CC) at para 108.

[59] As the *Bundesverfassungsgericht* held in *National Democratic Party*, where the candidate is so unlikely to succeed in an election as to render the constitutional concern unlikely to arise, it might not be necessary to disqualify that candidate. That case has been summarised as follows:

> "The National Democratic Party of Germany (NPD) advocate a concept aimed at abolishing the existing free democratic basic order. The NPD intends to replace the existing constitutional system with an authoritarian national state that adheres to the idea of an ethnically defined "people's community" (*Volksgemeinschaft*). Its political concept disrespects human dignity and is incompatible with the principle of democracy. Furthermore, the NPD acts in a systematic manner and with sufficient intensity towards achieving its aims that are directed against the free democratic basic order. However, (currently) there is a lack of specific and weighty indications suggesting that this endeavour will be successful; for that reason the Second Senate of the Federal Constitutional Court, in its judgment pronounced today, unanimously rejected as unfounded the *Bundesrat*'s admissible application to establish the unconstitutionality of the NPD and its sub-organisations".

[60] While we do not suggest that star and Astro are unlikely to win the election, the candidates themselves have dismissed the possibility — "in what world am I winning the election". This fortifies our view that star and Astro should remain candidates in this election cycle.

V. The challenge to Vortexion's candidacy

[61] One final matter. In the course of the hearing, Astro asked this Court to disqualify Vortexion from running for President:

> "I raise the question of whether [Vortexion] is eligible. I do not believe he should be able to run. His antics in this court case and his previous antics regarding the Swag Messiah Act show a sense of self over country and I believe it is in the best interest of the court to protect the Constitution from his candidacy". (Grammar adjusted.)

[62] It should be adequate reason to dismiss this challenge because Astro has admitted that "I'm just being as ridiculous as he is". But we add that it would

significantly chill the right of access to courts if candidates for President can be considered to threaten the constitutional order merely for objecting to another citizen's candidacy.

[63] Nor can this Court disqualify a candidate merely for proposing legislation, even if that legislation is grossly unconstitutional. Vortexion followed the constitutionally ordained legislative process in doing so, and the legislation was struck down by this Court. This all happened *within* the bounds of the Constitution.

[64] There is therefore no merit to the challenge that Vortexion's candidacy poses a threat to the constitutional order.

VI. Conclusion

[65] To the reader, it is as important to consider what this judgment concludes as what it does not. Nothing in this judgment must be construed to cast doubt on the good faith or trustworthiness of any of the parties to the matter.

[66] We conclude that the Constitution's value system, though it aims to safeguard the integrity of the Cortesian government, does not provide a sufficient justification to disqualify foreign leaders from running for President.

[67] We also conclude, however, that when those considerations are taken together with the special duties of the office of President, a citizen who is not a member of the in-game Cortesian nation cannot properly fulfil the constitutional functions of a President. Such a citizen is therefore disqualified from holding the office of President.

[68] This conclusion does not affect the candidacy of star and Astro, because we suspend its effect until the next presidential election.

VII. Order

[69] We issue the following order:

(a) Leave for direct access is granted.

(b) It is declared that a citizen who is not a member of the Cortesian nation in-game is not eligible to run for President.

(c) The declaration in (b) is suspended until the beginning of the next presidential election.

(d) Save as set out in (b), the application is dismissed.

(e) The counterapplication is dismissed.